

Tentative Rulings for September 3, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

25CECG05902	<i>Gaytan v. Family Dollar, LLC</i> is continued to Thursday, October 15, 2026, at 3:30 p.m. in Department 502.
-------------	---

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 502

Begin at the next page

(49)

Tentative Ruling

Re: ***Blair v. Sunrun Installation Services, Inc. et al.***
Superior Court Case No. 26CECG00082

Hearing Date: September 3, 2026 (Dept. 502)

Motion: By Defendant Sunrun Installation Services Inc. to Compel Arbitration and Stay Action

Tentative Ruling:

To grant the motion to compel arbitration as to plaintiffs' claims against Sunrun Installation Services Inc., and to stay plaintiffs' claims against Sunrun Installation Services Inc. pending arbitration. However, the fee-shifting clause from the arbitration provision is deemed severed from the contract.

To stay the claims against Goodleap, LLC pending the arbitration.

Explanation:

Defendant Sunrun Installation Services Inc. ("Defendant") moves to compel arbitration against plaintiffs John Blair and Tami Cox ("Cox", collectively "Plaintiffs").

The Existence of an Arbitration Agreement

Pursuant to California Code of Civil Procedure section 1281.2, "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement. (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact." (Civ. Proc. Code § 1281.2, paragraph breaks omitted.)

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement - either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see § 1281.2, subds. (a), (b)) - that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense." (*Rosenthal v. Great Western Fin. Securities*

Corp. (1996) 14 Cal. 4th 394, 413.) Thus, in ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534.)

By its terms, the agreement is governed by the Federal Arbitration Act ("FAA"), 9 U.S.C. § 1, et seq. Section 2 of the FAA provides for enforcement of arbitration provisions in any contract "evidencing a transaction involving commerce." (9 U.S.C. § 2.) To determine whether there is an enforceable arbitration agreement, courts apply state law principles related to formation, revocation, and enforcement of contracts. (*Banner Entertainment, Inc. v. Alchemy Filmworks, Inc.* (1998) 62 Cal.App.4th 348, 357.) Moving defendants are not required to submit evidence of impact on interstate commerce to establish FAA preemption. (See *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 157; *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 387, 394.) Plaintiffs do not challenge the governance of the FAA.

Here, Defendant has met the burden of establishing the existence of an agreement to arbitrate the claims raised in Plaintiff's Complaint. Defendant presents a verified copy of the contractual agreement that includes an arbitration clause. (Molton Decl., Exh. A.) Cox signed the agreement and initialed the arbitration clause. (*Id.*, ¶¶ 9, 11, Exh. A.)

Plaintiffs do not contest the existence of the agreement. However, Plaintiffs argue that all clauses of the arbitration agreement are unenforceable because the arbitration agreement violates Code of Civil Procedure section 1284.3.

Code of Civil Procedure Section 1284.3

Code of Civil Procedure section 1284.3, subdivision (a) states:

No neutral arbitrator or private arbitration company shall administer a consumer arbitration under any agreement or rule requiring that a consumer who is a party to the arbitration pay the fees and costs incurred by an opposing party if the consumer does not prevail in the arbitration, including, but not limited to, the fees and costs of the arbitrator, provider organization, attorney, or witnesses.

The pertinent part of the contract states, "THE ARBITRATOR MAY, IN THE AWARD, ALLOCATE ALL OR PART OF THE COSTS OF THE ARBITRATION, INCLUDING THE FEES OF THE ARBITRATOR AND THE REASONABLE ATTORNEY FEES OF THE PREVAILING PARTY." This fee-shifting clause, as written, does not have any limitations on its applicability. A result contrary to Code of Civil Procedure section 1284.3, subdivision (a) is possible. Although Defendant refers to the JAMS Rules, this fee-shifting clause is separate of the JAMS rules. Therefore, the clause violates Code of Civil Procedure section 1284.3, subdivision (a).

Plaintiffs argue that due to the clause violating Code of Civil Procedure section 1284.3, subdivision (a), all of the clauses pertaining to arbitration are invalid and unenforceable. However, the fee-shifting provision is collateral to the contract and can be severed without affecting any of the other provisions of the contract. Plaintiffs provide

no other basis to challenge the agreement to arbitrate in the contract. Accordingly, the motion to compel arbitration is granted, Plaintiffs claims are stayed pending arbitration, but the fee-shifting provision is severed from the contract.

Finally, with regards to the claims against Goodleap, LLC ("Goodleap"). Goodleap has not been served. The court therefore has no jurisdiction over Goodleap. Accordingly, the motion to compel arbitration with regards to Defendant's claims is granted, Plaintiffs' claims against Defendant are stayed pending arbitration, and, pursuant to Code of Civil Procedure section 1281.2, Plaintiffs' claims against Goodleap are stayed pending the arbitration.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 9-2-26.
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: **Voorhees v. Alvarado, et al.**
Superior Court Case No. 26CECG00219

Hearing Date: September 3, 2026 (Dept. 502)

Motion: by Defendants Sanger Unified School District, Jeremy Alvarado, and Wilson Elementary School Demurring to the Complaint and to Strike Portions of the Complaint

Tentative Ruling:

To overrule the demurrer to the entire complaint. (Code Civ. Proc., § 430.10, subd. (e).)

To sustain the demurrer to the fourth cause of action, with leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

To strike the prayer for pre-judgment interest, with leave to amend. (Code Civ. Proc., § 436; Civ. Code, §§ 3287; 3288.)

To strike the prayer for exemplary damages as to defendants Sanger Unified School District and Wilson Elementary School only. (Code Civ. Proc., § 436; Gov't. Code, § 818.)

Plaintiff is granted 20 days' leave to file the First Amended Complaint. The time in which the complaint can be amended will run from service by the clerk of the minute order. All new allegations in the First Amended Complaint are to be set in **boldface** type.

Explanation:

Demurrer to the Fourth Cause of Action

Defendants Sanger Unified School District, Jeremy Alvarado, and Wilson Elementary School, demur to the fourth cause of action for intentional infliction of emotional distress on the ground that plaintiff failed to plead compliance with the Government Tort Claims Act prior to filing her complaint. (Govt. Code §§ 815, subd. (a); 911.2; 950.2; 954.4.)

Plaintiff does not dispute that she failed to plead timely compliance with the Government Tort Claims Act. However, she contends that defendant Alvarado was not acting in the scope of his employment with the school district when he allegedly discriminated against and harassed her, so she was not required to bring a tort claim before filing her suit.

“Ordinarily, the determination whether an employee has acted within the scope of employment presents a question of fact; it becomes a question of law, however, when ‘the facts are undisputed and no conflicting inferences are possible.’ ” (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 299 citing *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 213.)

Although plaintiff argues that the categorization of an employee’s action as within or outside the scope of employment is a question of fact and thus, would generally be inappropriate on demurrer, plaintiff has alleged no facts to support the determination that Alvarado was not acting within the scope of his employment. In particular, all of the comments Alvarado is alleged to have made are in reference to plaintiff’s age and retirement. (Compl., ¶ 10a.) All of these comments were made on school property. (*Id.*, at ¶ 10b.) It is also alleged that Alvarado gave plaintiff negative evaluations, because the school district instructed him to do so. (*Id.*, at ¶¶ 10k, 10bb.) Similarly, plaintiff alleges that she believes Alvarado’s motivation for the write-up falsely accusing her of causing harm to a child, was to push her out of her role due to her age. (*Id.* at ¶ 10s.) Plaintiff’s retirement is not otherwise alleged to benefit Alvarado in anyway other than for the benefit of his employer. Accordingly, there are no allegations to suggest that Alvarado was not acting within the scope of his employment when he conducted these acts. Therefore, the demurrer to the fourth cause of action is sustained, with leave to amend.

Demurrer to the Entire Complaint

Defendants further demur to the entirety of the complaint on the ground that defendant Wilson Elementary School has been improperly joined as a party to this action, because it is not a separate legal entity. However, defendants base this information on facts that are not pled or judicially noticeable, which is inappropriate on demurrer. Grounds for the motion must appear on the face of the challenged pleading or on facts, which the court may judicially notice. (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.) Therefore, the demurrer on this ground is overruled.

Motion to Strike

A motion to strike can be used to cut out any irrelevant, false or improper matters or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 436.) A motion to strike is the proper procedure to challenge an improper request for relief, or improper remedy, within a complaint. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-167.)

Defendants move to strike the portions of the complaint referencing punitive damages and the prayer for the same and pre-judgment interest. Plaintiff concedes that punitive damages are barred against public entities and therefore, proceeds to seek punitive damages against Alvarado individually only.

With respect to punitive damage allegations, mere legal conclusions of oppression, fraud or malice are insufficient (and hence improper) and therefore may be stricken. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29-30.)

- *Punitive Damages*

To support punitive damages, the complaint must allege ultimate facts of the defendant's oppression, fraud, or malice. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Evidentiary facts are not required. "[A]bsent an intent to injure the plaintiff, 'malice' requires more than a willful and conscious disregard of the plaintiff's interests. The additional component of 'despicable conduct' must be found." (*College Hosp. Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) "Despicable" conduct is defined as "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Ibid.*) Such conduct has been described as "having the character of outrage frequently associated with crime." (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287; *Cloud v. Casey* (1999) 76 Cal.App.4th 895, 912.)

A claim may be supported by showing "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) To establish conscious disregard, "the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 908, italics omitted.)

Here, plaintiff alleges that Alvarado engaged in a series of conduct in an effort to push her out of her employment due to her age. Plaintiff alleges that Alvarado made multiple comments about her age and retirement, failed to provide her with necessary evaluations, gave her unwarranted negative evaluations, and falsely accused her and wrote her up for causing physical harm to a child. (See Compl., ¶ 10.) At least at the pleading stage, these allegations are sufficient to survive a motion to strike. Therefore, the punitive damages are stricken as to the public entity defendants only.

- *Pre-judgment Interest*

If the sum owed plaintiff is certain or capable of being made certain by calculation, plaintiff is entitled as a matter of law to prejudgment interest. (Civ. Code, § 3287, subd. (a).) If the claim is based upon a cause of action in contract where the claim is unliquidated, the court has discretion to award plaintiff prejudgment interest, but from no earlier than the date the cause of action was filed. (Civ. Code, § 3287, subd. (b).) For all other actions not arising from contract, and in every case of oppression, fraud, or malice, interest may be given in the discretion of the jury. (Civ. Code, § 3288.) However, the award of prejudgment interest pursuant to Civil Code section 3288 "represents the accretion of wealth which money or particular property could have produced during a period of loss." (*Curtis v. State of California ex rel. Dept. of Transportation* (1982) 128 Cal.App.3d 668, 686.)

Plaintiff's damages based on the allegations are not readily subject to precise calculation, and therefore, prejudgment interest is not warranted here. Plaintiff contends that she is reserving the right to seek pre-judgment interest on any liquidated damage components of her claim, but fails to identify any such damages or plead any such allegations that would give rise to such damages. Therefore, the prayer for pre-judgment interest is stricken with leave to amend.

(36)

Tentative Ruling

Re: ***Pizarro v. Ochoa, et al.***
Superior Court Case No. 25CECG04421

Hearing Date: September 3, 2026 (Dept. 502)

Motion: by Plaintiff Bianca Pizarro Order Deeming Requests to Admit Truth of Facts Against Defendant Richard Ochoa Admitted; and Compelling his Responses to (1) Form Interrogatories; (2) Special Interrogatories; and (3) Requests for Production of Documents; and for Monetary Sanctions

Tentative Ruling:

To grant and to award monetary sanctions in the total amount of \$1,246.60 against Defendant Richard Ochoa (hereinafter "Defendant"), payable within 30 days of the date of this order, with the time to run from service of this minute order by the clerk.

The matters specified in Plaintiff's Requests for Admission, Set One, propounded on Defendant are deemed admitted, unless Defendant serves, before the hearing, proposed responses to the requests for admission that are in substantial compliance with the Code of Civil Procedure, section 2033.220.

Defendant shall serve verified responses without objections, to Plaintiff's Form Interrogatories, Set Two, Special Interrogatories, Set One, and Request for Production of Documents, Set One, no later than 10 court days from the date of this order, with the time to run from the service of this minute order by the clerk.

Explanation:

Interrogatories and Document Production

Defendant has had ample time to respond to the discovery propounded by defendant, and he has not done so. Failing to respond to discovery within the 30-day time limit waives objections to the discovery, including claims of privilege and work product protection. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a); see *Leach v. Sup.Ct. (Markum)* (1980) 111 Cal.App.3d 902, 905-906.)

Requests for Admissions

Failure to timely respond to requests for admission results in a waiver of all objections to the requests. (Code Civ. Proc., § 2033.280, subd. (a).) The statutory language leaves no room for discretion. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 828.) "The law governing the consequences for failing to respond to requests for admission may be the most unforgiving in civil procedure. There is no relief under [Code of Civil Procedure] section 473. The defaulting party is limited to the remedies available in [Code of Civil Procedure section 2033.280]" (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 36

Cal.App.4th 393, 394-395, disapproved on other grounds in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983, fn. 12.)

But the court may relieve the party who fails to file a timely response if, before entry of the order deeming the requested matters admitted, the party in default (1) moves for relief from waiver and shows that the failure to serve a timely response was due to "mistake, inadvertence or excusable neglect" and (2) serves a response in "substantial compliance" with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subd. (a)-(c); see also *Brigante v. Huang* (1993) 20 Cal.App.4th 1569, 1584, disapproved on other grounds in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 983, fn. 12.) "If the party manages to serve its responses before the hearing, the court has no discretion but to deny the motion [¶] Everything, in short, depends on submitting responses prior to the hearing." (*Demyer v. Costa Mesa Mobile Home Estates* (1995) 26 Cal.App.4th 393, 395-396.)

Monetary Sanctions

Sanctions are mandatory unless the court finds that the party acted "with substantial justification" or other circumstances that would render sanctions "unjust." (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [document demands], 2033.280, subd. (c) [requests for admission].) Since no opposition was filed, no facts were presented to warrant finding sanctions unjust. The court finds it reasonable to allow only 2.5 hours for the preparation of these simple discovery motions at the hourly rate of \$400, provided by counsel, and \$246.60 for the cost of filing these motions. Therefore, the total amount of sanctions awarded is \$1,246.60.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 9-2-26 .

(Judge's initials) (Date)

(41)

Tentative Ruling

Re: ***Sal Montano v. John Doe***
Superior Court Case No. 23CECG05132

Hearing Date: September 3, 2026 (Dept. 502)

Motion: By Defendant City of Fresno for Summary Judgment

Tentative Ruling:

To grant the defendant's motion for summary judgment. The City of Fresno is directed to submit to this court, within five days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

Explanation:

The plaintiff, Sal Montano (Plaintiff), alleges he slipped and fell while boarding a Fresno Area Express (FAX) bus. Plaintiff filed a form complaint for personal injuries based on motor vehicle negligence, general negligence, and premises liability for dangerous condition of public property against several defendants, including the City of Fresno (City). The City now moves for summary judgment. In the alternative, the City moves for summary adjudication as to the motor vehicle and general negligence causes of action.

Law Governing Summary Judgment and Summary Adjudication

A motion for summary judgment is generally directed toward an entire action or pleading. (Code Civ. Proc., §437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) In general, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

Code of Civil Procedure section 437c, subdivision (c) provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." A defendant moving for summary judgment has the initial burden of presenting evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 (*Aguilar*).) If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 850.)

The trial court must "carefully scrutinize the moving party's papers and resolve all doubts regarding the existence of material, triable issues of fact in favor of the party opposing the motion." (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 36.) The court must strictly construe the moving party's declarations and liberally construe the opposing party's declarations. (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 575 [affirming trial court's granting of employer's summary judgment motion]; *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839 [reversing summary judgment where evidence suggested strong possibility trier of fact would resolve issues in favor of moving defendant, but not necessarily so].) "A triable issue of fact is created when the evidence reasonably permits the trier of fact, under the applicable standard of proof, to find the purportedly contested fact in favor of the party opposing the motion." (*Loomis v. Amazon.com LLC* (2021) 63 Cal.App.5th 466, 475 [reversing summary judgment where genuine issues of material fact existed on consumer's strict products liability claim].)

The City Satisfies Its Initial Burden

The City contends it is entitled to summary judgment because Plaintiff cannot establish a dangerous condition or negligence in the operation of the FAX bus--this case simply involves an accident, for which the City cannot be liable as a matter of law.

To support its motion, the City's separate statement identifies 67 material "facts," (although the City improperly includes legal conclusions, in addition to facts). The relevant facts are as follows: Plaintiff slipped and fell while boarding FAX bus #0601 at 7:31 p.m. on January 2, 2023. (Fact No. 2.) The bus was not in motion at the time of the incident. (Fact No. 5.) The bus arrived at its regularly-scheduled stop at Fulton and Divisadero Streets to allow passengers to board and exit the bus. (Fact No. 14.) The bus was secured with the parking brake applied and knelt. (Fact No. 15.) When the doors of a FAX bus open to allow passengers to board, a light illuminates the entranceway. (Fact No. 16.)

Before boarding the bus, Plaintiff put his bike on the bike rack. (Fact No. 17.) Plaintiff was carrying grocery bags and "did not use the handrails as he boarded the bus because he 'didn't pay attention' and 'just wanted to go get on the bus.'" (Fact Nos. 18, 19.) "Plaintiff was looking forward as he boarded the bus." (Fact No. 20.) "Plaintiff fell as he took his first step onto the bus." (Fact No. 21.) Prior to the incident, it had been raining during the day. (Fact No. 23.) Plaintiff claims he fell because the bus was wet, but he did not see any water before attempting to board the bus, nor did he take any pictures. (Fact Nos. 25, 26, 27.) Shortly after the fall, the bus driver checked the area where Plaintiff fell and noted it was dry. (Fact Nos. 28, 29.) After the fall, the bus driver prepared an incident report wherein he described the incident at follows:

As a passenger boarded the bus, with the bus secured, parking brake applied, bus k[n]elt, carrying a bunch of items and not holding on to the door handles, he fell in the front doorway. He fell onto his belongings, not the bus floor. I asked if he was hurt. He said no but he hit his knees. I asked if he needed medical attention, he declined. I reported the incident to C12. I asked for his personal information. I also asked how he fell. He said he slipped because the curb and the bus floor was wet. At the next stop I checked the floor and it was dry. At B shelter.

(See Fact No. 31, City's evid., ex. E-1 [bus driver's rpt.].) Before the fall, the bus driver did not see any accumulating water on the floor at the entrance, nor did he see any defects or tripping hazards at the entrance at any time during his shift. (Fact Nos. 32, 33.)

The City's bus drivers routinely check their buses, including the entrance, for dangerous conditions. (Fact Nos. 60, 62.) When the driver of Bus #0601 inspected the bus, including an inspection 13 minutes before Plaintiff's fall, the driver did not observe any slippery substance, water or other tripping hazards at the start of his shift, or at any time during his shift, whether before or after Plaintiff's fall. (Fact Nos. 37, 52, 61, 64 [bus driver's decl., ¶¶ 9, 14, 15].)

First Cause of Action – Motor Vehicle Negligence

In the operative first amended complaint, Plaintiff alleges his first cause of action for negligent operation of a motor vehicle under Vehicle Code section 17001, which provides:

A public entity is liable for death or injury to person or property proximately caused by a negligent or wrongful act or omission in the operation of any motor vehicle by an employee of the public entity acting within the scope of his employment.

In adopting Vehicle Code section 17001, the Legislature intended "to use the word 'operation' in its popular and ordinary sense as applied to motor vehicles." (*Chilcote v. San Bernardino County* (1933) 218 Cal. 444, 445 [construing Civ. Code, § 1714 1/4, the predecessor to Veh. Code, § 17001 (*Chilcote*).) As the California Supreme Court has consistently explained, "to be in operation, the vehicle must be in a 'state of being at work' or 'in the active exercise of some specific function' by performing work or producing effects at the time and place the injury is inflicted." (*Ibid.*)

The City cites *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, where the Supreme Court explained Vehicle Code section 17001 did not apply to the facts of that case because the wrongful conduct did not involve the operation of a motor vehicle:

The alleged negligence of the county and its employees in failing to provide a secure vehicle, in failing adequately to restrain plaintiff with devices such as a waist chain or leg chains or to handcuff plaintiff's hands behind her, and in failing to have one of the county employees sit in the back seat with plaintiff to prevent her from escaping, does not constitute negligent or wrongful conduct or omissions in the operation of a motor vehicle within the meaning of Vehicle Code section 17001. For that statute to apply, it is not sufficient that a motor vehicle somehow be involved in the series of events that results in the injury. The injury must be proximately caused by the negligent "operation of a motor vehicle."

(*Ladd v. County of San Mateo*, *supra*, 12 Cal.4th at p. 923.)

The City also cites *Hernandez v. City of Pomona* (2009) 46 Cal.4th 501, 520, where the Supreme Court reiterated the rule of *Chilcote*, that to meet the statutory requirement under Vehicle Code section 17001, which applies to an injury caused by a negligent or wrongful act in the operation of a motor vehicle, it is not enough that a motor vehicle is somehow involved. "Instead, the vehicle must be in a 'state of being at work' or 'in the ... exercise of some specific function' by performing work or producing effects *at the time and place the injury is inflicted*." (*Hernandez v. City of Pomona, supra*, 46 Cal.4th at p. 520, citing *Chilcote, supra*, 218 Cal. at p. 445, italics added by *Hernandez* court.)

The City correctly concludes Vehicle Code section 17001 does not apply to the facts of this case:

Similarly, here, while the bus was accepting passengers, the actual "negligent act" that Plaintiff complains of is the alleged condition of the bus and the allegation that it was wet or slippery. There are no factual allegations that the operation of the vehicle was negligent.

(Memo., p. 10:8-11.) The court finds the City meets its initial burden to show Plaintiff cannot prevail on his first cause of action for negligent operation of a motor vehicle under Vehicle Code section 17001.

Second Cause of Action - Negligence

The City correctly contends Plaintiff cannot prevail on his second cause of action for general negligence because the City is immune from liability for common law negligence. "Under the Government Claims Act [Act] (Gov. Code, § 810 et seq.), there is no common law tort liability for public entities in California; instead, such liability must be based on statute." (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897.) The Supreme Court has explained the basic structure of the Act as follows:

The basic architecture of the Act is encapsulated in Government Code section 815. Subdivision (a) of that section makes clear that under the [Act], there is no such thing as common law tort liability for public entities; a public entity is not liable for an injury "[e]xcept as otherwise provided by statute." (Gov. Code, § 815; see *Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897.) The [Act] provides several grounds for public entity liability, including, as relevant here, for injuries caused "by a dangerous condition of [a public entity's] property" that was created through an employee's negligence. (Gov. Code, § 835, subd. (a).)

(*Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803.)

In *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 980, the Supreme Court summarized the Tort Claims Act as follows (all quoted statutory references are to the Government Code):

[The Tort Claims Act] establishes the basic rules that public *entities* are immune from liability except as provided by statute (§ 815, subd. (a)), that public *employees* are liable for their torts except as otherwise provided by

statute (§ 820, subd. (a)), that public entities are vicariously liable for the torts of their employees (§ 815.2, subd. (a)), and that public entities are immune where their employees are immune, except as otherwise provided by statute (§ 815.2, subd. (b)). (*Italics original.*)

The City meets its burden to establish that Plaintiff cannot prevail on his second cause of action because the City is immune from liability for common law negligence.

Third Cause of Action – Premises Liability

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) Government Code section 835, sets forth the conditions of a public entity's liability for a dangerous condition of its property, with certain inapplicable statutory exceptions, as follows:

[A] public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: [¶] (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition under Government Code section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.

(Gov. Code, § 835.) The City contends summary judgment is proper, *inter alia*, because Plaintiff cannot establish the required elements of premises liability—including a dangerous condition and notice.

On the element of a dangerous condition, the City cites *Buehler v. Alpha Beta Co.* (1990) 224 Cal.App.3d 729 (*Buehler*), a case where the plaintiff, an 84-year-old woman, carrying several items in her hands and not using a cart, slipped and fell in the defendant's store. The plaintiff did not know what she slipped on, but her theory was that the floor was improperly waxed. (*Id.* at p. 733.) There was an eyewitness to the fall who stated that she did not see why the plaintiff fell and, furthermore, she did not think the floor was slippery and did not observe any slippery substances on the floor. (*Id.* at p. 734.) In her deposition, the plaintiff testified that she did not notice any liquid or solid debris on the floor before or after she fell. Based on those facts, the appellate court stated "[c]onjecture that the floor might have been too slippery at the location where appellant happened to fall is mere speculation which is legally insufficient to defeat a summary judgment." The plaintiff in *Buehler* had no facts, either directly or indirectly of any circumstances from which negligence might be inferred. Therefore, the appellate court affirmed the trial court's decision to grant the motion for summary judgment. (As an independent reason to grant the motion, the trial court also noted the plaintiff failed to file a separate statement.) (*Ibid.*)

Here, the video evidence shows Plaintiff was wearing a backpack and carrying two large, full grocery bags as he attempted to board the bus without holding the handrails. He made a misstep and fell as he boarded the bus. (Fact Nos. 18, 22.) Plaintiff believes he fell because the bus was wet. (Fact No. 25.) Aside from his belief that the bus was wet, Plaintiff took no pictures and has no evidence that the bus was wet at the time and location of his fall. (Fact No. 27.) The bus driver checked the area where Plaintiff fell shortly after the fall, and at no time during his shift did he see a defect or tripping hazard at the entrance of the bus where Plaintiff fell. (Fact Nos. 28, 32, 33.) When asked at his deposition to describe where he slipped, Plaintiff explained: "I believe it was my first – my first step to get onto the bus. I stretched to get on and I – that's when I slipped." (Montano depo., ex. E-1, p. 17:22-24.).

The court finds the City meets its burden to show Plaintiff cannot establish the element of a dangerous condition. Plaintiff's testimony that he slipped because the bus was wet is simply conjecture that a dangerous condition existed. His testimony, without more evidence, is too speculative to constitute substantial evidence of a dangerous condition and thus, it is "legally insufficient to defeat a summary judgment." (*Buehler v. Alpha Beta Co.*, *supra*, 224 Cal.App.3d at p. 734.) Accordingly, the City demonstrates Plaintiff has no evidence to prove the existence of a dangerous condition that caused Plaintiff's fall. Without such evidence, Plaintiff cannot establish an essential element of his cause of action.

In addition to the lack of a dangerous condition, the City contends Plaintiff has no evidence to show the City had actual or constructive notice of the alleged dangerous condition of its property. In general, "questions of whether a dangerous condition could have been discovered by reasonable inspection and whether there was adequate time for preventive measures are properly left to the jury. [Citations.]" (*Carson v. Facilities Development Co.* (1984) 36 Cal.3d 830, 843 [trial court erred in granting city's nonsuit motion because jury could have inferred city had constructive knowledge of dangerous condition created by encroaching sign].)

The City correctly argues that because Plaintiff asserts the City failed to address a dangerous condition, which no City employee created (Fact Nos. 57, 58), Plaintiff must prove the City had actual or constructive notice of the condition. The California Supreme Court has determined that generally, the jury must resolve the notice issue on a case-by-case basis, with no exact time limit:

Whether a dangerous condition existed long enough for a reasonably prudent person to have discovered it is ordinarily a question of fact for the jury, and the cases do not impose exact time limitations. Each accident must be viewed in light of its own unique circumstances.

(*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1207 [affirming jury verdict that defendant's failure to inspect premises within a reasonable time was sufficient for inference that spilled milk was on floor long enough to give defendant chance to discover and remedy it].)

A plaintiff may use circumstantial evidence and inferences to prove an entity should have discovered a dangerous condition:

[A] plaintiff may prove a dangerous condition existed for an unreasonable time with circumstantial evidence, and ... "evidence that an inspection had not been made within a particular period of time prior to an accident may warrant an inference that the defective condition existed long enough so that a person exercising reasonable care would have discovered it."

(*Ortega v. Kmart Corp*, *supra*, 26 Cal.4th at p. 1210, citing *Bridgman v. Safeway Stores, Inc.* (1960) 53 Cal.2d 443, 447.)

Government Code section 835.2 defines "notice," and provides notice can be either actual or constructive. The City contends there is no evidence to prove the element of the City's prior notice of a dangerous condition. The City has presented evidence to show it had no actual notice of an alleged dangerous condition before the incident. (Fact Nos. 28, 29, 32, 33, 37, 38, 39, 41, 42, 46, 47, 50-54, 60-66.)

On the issue of constructive notice, the City's citations include *Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, where the court explained the threshold elements of constructive notice as follows:

Whether the dangerous condition was obvious and whether it existed for a sufficient period of time are threshold elements to establish a claim of constructive notice. [Citation.] Where the plaintiff fails to present direct or circumstantial evidence as to either element, his claim is deficient as a matter of law. [Citation.]

(*Id.* at p. 317.) The City also cites *State v. Superior Court for San Mateo County* (1968) 263 Cal.App.2d 396, where the appellate court found the trial court erred in denying summary judgment because the plaintiff had failed to establish that a dangerous condition existed for a sufficient length of time:

The primary and indispensable element of constructive notice is a showing that the *obvious condition existed a sufficient period of time before the accident*. [Citation.] Here, there was no evidence (direct or circumstantial) that the danger was obvious nor that the situation had existed for any particular length of time before the accident. Thus, we hold, *as a matter of law*, that the requirements of constructive notice, as defined in 835.2, subdivision (b), were not met.

(*Id.* at p. 400, italics original.)

Here, the City meets its initial burden to show Plaintiff has no direct or circumstantial evidence as to either threshold element—the alleged obvious dangerous condition or the period of time such a condition existed. (Fact Nos. 27, 28, 46, 47, 48 [Plaintiff has no evidence of how long any alleged water was present before his fall], 49, 55, 56[.]) Therefore, Plaintiff cannot prove the essential element that the City had actual or constructive knowledge of the alleged dangerous condition.

In summary, the City presents evidence to show the alleged condition was not dangerous as a matter of law. Not only is the condition not dangerous, but the City had no actual notice and no constructive notice of the alleged condition, and no knowledge that a City employee created the alleged condition. Because the City meets its initial burden to show Plaintiff cannot establish at least one essential element of his third cause of action for premises liability, the burden shifts to Plaintiff to raise a triable issue of material fact.

Plaintiff Fails to Raise a Triable Issue of Material Fact

A party opposing summary judgment must present admissible evidence, including "declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice" must or may 'be taken.'" (*Aguilar, supra*, 25 Cal.4th at p. 843, quoting Code Civ. Proc., § 437c, subd. (b).) Code of Civil Procedure section 437c, subdivision (p)(2) sets forth a plaintiff's burden after a defendant meets the initial burden to prove at least one element of a cause of action cannot be established:

Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff . . . shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The party opposing summary judgment must also submit a properly-formatted separate statement. California Rules of Court, rule 3.1350, (f)(2) provides that on the right side of the separate statement, "directly opposite the recitation of the moving party's statement of material facts and supporting evidence," the opposing party's response "must unequivocally state whether that fact is 'disputed' or 'undisputed.'" Furthermore, the "opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted."

The purpose of the separate statement is to assist the court to determine whether a case presents triable material issues of fact:

As we mentioned, one of the purposes of the separate statement is "to permit the trial court to focus on whether [the material] facts are truly undisputed." [Citation.] This can only be accomplished by both parties preparing the separate statement according to the statute and Rules of Court and acting in good faith. The moving party must include only *material* statements of fact, not incidental and background facts. The opposing party must concede facts that are truly undisputed and only add facts that are material. It is difficult to conceive of a properly drafted separate statement that includes over 600 paragraphs of undisputed material facts.

Trial courts [fn] should not hesitate to deny summary judgment motions when the moving party fails to draft a compliant separate

statement – and an inappropriate separate statement includes an overly long document that includes multiple nonmaterial facts in violation of the Rules of Court. Courts should also not hesitate to disregard attempts to game the system by the opposing party claiming facts are “disputed” when the uncontroverted evidence clearly shows otherwise.

(*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 876.)

Here, the court finds Plaintiff fails to submit a proper response to the City's separate statement of undisputed material facts, because Plaintiff fails to respond to each fact listed by Plaintiff by *unequivocally* stating whether the fact is disputed or undisputed in the two-column format required by California Rules of Court, rule 3.1350. “Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion.” (Code Civ. Proc., § 437c, subd. (b)(3).) As the City points out in its reply, Plaintiff fails to produce any evidence that establishes a triable issue of fact. Instead, Plaintiff often simply copies and pastes the same lengthy response challenging the credibility of the bus driver based on speculation. By doing so, Plaintiff submits an overly-long 66-page separate statement that obscures the issues, rather than assisting the court to determine whether the facts are truly undisputed.

As the City explains in its reply, Plaintiff fails to raise a triable issue of material fact:

Here, Plaintiff's opposition rests exclusively on improper argument, speculation, and attacking the credibility of Mr. Gumbs [the bus driver]. Plaintiff cites no evidence in [his] opposition or opposing separate statement to create a triable issue of fact. The party opposing summary judgment “must produce evidence showing some triable issue of material fact” and cannot base their opposition solely on speculation or “den[ial of] the credibility of the [defendant's] witnesses.” (*Eng v. Opperman* (2025) 117 Cal.App.5th 354, 376.) Plaintiff essentially states that the entirety of Mr. Gumbs declaration should be disregarded because he states he performed his inspection at 7:18 and Plaintiff, without any evidence, speculates that he wrote 4:18 instead of 7:18 on his inspection sheet. While Plaintiff has no evidence that it was actually a 4 instead of a 7, it is nonetheless immaterial and does not create a triable issue of material fact. Whether Mr. Gumbs [sic] initial inspection occurred at 4:18 or 7:18, there is no dispute that an inspection took place (Ex. E para 8-15); there is also no dispute that Mr. Gumbs was regularly checking the front entrance of the bus throughout his shift and never saw any water (Ex. E para 9, 14-15); there is also no dispute that Mr. Gumbs, per his training, would indicate any defective items observed throughout his shift on the inspection card and that “any defects or slip hazards would be noted on the daily inspection report” and no defects were noted at any time (Ex. E. para 15). Plaintiff merely states that there is a time discrepancy so none of his declaration should be believed. Despite this, Plaintiff has no dispute that if there was a slip hazard or other defect observed at anytime it would have been noted and there were no notations which leads to the reasonable inference that there were no defects on the bus. That in combination with Mr. Gumbs' inspection of the area shortly after the incident (UMF 28-29), showing it was

Evidentiary Objections

Conclusion

Tentative Ruling

(03)

Tentative Ruling

Re: ***Jane Doe v. Clovis Unified School District***
Case No. 22CECG03712

Hearing Date: September 3, 2026 (Dept. 502)

Motion: Defendant Clovis Unified School District's Motion for Summary Judgment, or in the Alternative, Summary Adjudication

Tentative Ruling:

To deny defendant Clovis Unified School District's motion for summary judgment, and the alternative motion for summary adjudication. (Code Civ. Proc., § 437c.)

Explanation:

Defendant's primary argument is that plaintiff never reported the alleged sexual abuse by her teacher, Jon Randy Powell, to the District, the police, her family, or her friends, and that no one else witnessed the abuse. The District claims that there was nothing in Powell's personnel file that indicated that he might have a propensity to molest his students. By the time Powell's abuse of other students became known, he was no longer abusing plaintiff. Therefore, the District argues that it had no actual or constructive notice of the abuse, and thus had no duty to take any steps to investigate or prevent further abuse. (*ZV. v. County of Riverside* (2015) 238 Cal.App.4th 889, 903.) In addition, the District argues that it cannot be held vicariously liable for the intentional actions of Powell, as his sexual abuse of students was not in the course and scope of his duties as a teacher. (*John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438.) In addition, the District argues that most of abuse occurred off school property, and that it is statutorily immune from liability for its teacher's misconduct that occurred off campus. (Education Code, § 44808.) Therefore, the District concludes that it is entitled to summary judgment or adjudication of the negligence causes of action.

"The elements of a cause of action for negligence are well established. They are '(a) a *legal duty* to use due care; (b) a *breach* of such legal duty; [and] (c) the breach as the *proximate or legal cause* of the resulting injury.' " (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 834, italics in original.)

"[A] negligent supervision claim depends, in part, on a showing that the risk of harm was reasonably foreseeable. 'Foreseeability is determined in light of all the circumstances and does not require prior identical events or injuries.' " "It is not necessary to prove that the very injury which occurred must have been foreseeable by the school authorities. ... Their negligence is established if a reasonably prudent person would foresee that injuries of the same general type would be likely to happen in the absence of [adequate] safeguards.'" (*D.Z. v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 210, 229, citations omitted.) "As such, to support her negligent supervision claim, appellant had to prove *both* that Shelburne posed a risk of harm to students and that the risk of harm was reasonably foreseeable, i.e., that LAUSD knew or should have known of the risk." (*Id.* at p. 230, citation omitted, italics in original.)

A public entity is not, as a matter of law, vicariously liable under a respondeat superior theory for intentional torts committed by its employees. However, it may be held directly liable for its own negligence in hiring or supervising the employee, who then commits intentional torts outside the scope of the employment relationship. (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 902.) "To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act." (*Ibid*, citations omitted.)

Thus, in order for the plaintiff to prevail on her negligence claims, she must point to some evidence that the District had actual or constructive knowledge of Powell's propensity to molest his students. (*Ibid*.) However, it is not necessary for plaintiff to show that the District had actual knowledge of the abuse allegedly committed by Powell. Plaintiff only needs to show that the District knew or should have known of Powell's propensity to sexually abuse students. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 869-870.) Even if the District did not have actual knowledge of Powell's tendencies, it may still be held liable if it should have known of his tendencies based on the facts available to it. (*Doe v. Lawndale Elementary School Dist.* (2021) 72 Cal.App.5th 113, 119, 129-130.)

"As the Supreme Court held in *C.A.*, 'a public school district may be vicariously liable under section 815.2 for the negligence of administrators or supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student.' The Supreme Court explained that a school district is liable for the negligence of supervisory employees who 'knew or should have known of [a school employee's] dangerous propensities, but nevertheless hired, retained and failed to properly supervise' the employee. A school district's administrators and other supervisory employees are responsible for 'taking reasonable measures to guard pupils against harassment and abuse from foreseeable sources, including any teachers or counselors they know or have reason to know are prone to such abuse.'" (*Roe v. Hesperia Unified School District* (2022) 85 Cal.App.5th 13, 25, citations omitted.)

"Knowledge may be shown by circumstantial evidence 'which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts.'" (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206-1207, citation omitted.)

Here, while Clovis Unified argues that it had no actual or constructive knowledge of Powell's propensity to molest his students and thus it had no duty to protect plaintiff from him, plaintiff has presented evidence that raises a triable issue of material fact with regard to whether the District had actual or constructive knowledge of his tendencies. Plaintiff's evidence indicates that Powell made frequent comments to her about her physical appearance and body during class. (Perkins decl., ¶ 4, Exhibit B, J.H. depo., pp. 52:18-21; 57:12-20.) He made similar comments about other girls in the class. (J.H. depo., pp. 52:14-53:2.) He would have plaintiff and other girls in the class bend over and then he would rub himself against them. (*Id.* at p. 54:3-8.) He joked in front of the class that he had "popped [plaintiff's] cherry." (*Id.* at pp. 82:232 – 83:24.) He put plaintiff's and other girls' hands on his pants and say "look what you're doing to me." (*Id.* at p. 89:1-25.) Powell often kept the door open to his classroom, so his conduct was visible to anyone who might walk by. (*Id.* at p. 55:2-12; Exhibit C to Perkins decl., Powell depo., p. 50:6-14.)

Plaintiff has also alleged in her deposition that Powell would place her hand on his genitals, press himself against her, and grab her rear end while they were in the cafeteria and other public areas of the school when other students and staff were present. (J.H. depo., pp. 55:16 - 56:3, 57:21 - 58:11.) He also placed her hand under his shorts and on his penis during class. (*Id.* at pp. 74:1 - 75:9.) Plaintiff believed that "everyone" knew about Powell's behavior because it was so open and "he never hid it." (*Id.* at p. 147:1-20.)

Plaintiff also regularly left school property with Powell during lunch, walking with him to his car and riding to his house. (*Id.* at pp. 155:3 - 156:8.) They would walk to his car in full view of other classrooms, which were occupied by students and faculty members. (*Id.* at pp. 154:3 - 155:2.) One of the other teachers, Ms. Flynn, saw plaintiff and Powell leaving campus together and expressed her concern with plaintiff and Powell about the trips. (*Id.* at pp. 161:9 - 162:5.) Powell would allegedly sexually abuse plaintiff during the lunch visits to his home. (*Id.* at pp. 157:1 - 158:3.) Powell would provide plaintiff with alcohol during the trips, and she would sometimes return to school drunk. (*Id.* at pp. 159:8 - 160:9.) Powell would then write her a hall pass to give to other teachers so that she would not have to go to other classes that day. (*Id.* at p. 159:12-22.)

Powell admitted that he once wrote hall passes for two other female students who got drunk at his house, although he claimed that they stole alcohol from him without his knowledge and that he was just trying to avoid having to report them. (Powell depo., pp. 110:6 - 111:6.) One of Powell's other female students also requested to be removed from his class after he commented on her appearance, although Powell claims that she simply wanted to be with her best friend, who was in a different classroom. (Powell depo., p. 129:2-11.)

Powell also allegedly sexually assaulted plaintiff at his plant nursery business. (J.H. depo., pp. 70:24 - 71:4.) There were other District employees at the nursery when plaintiff was there with Powell. (*Id.* at p. 80:5-9.)

Thus, plaintiff has submitted sufficient evidence to raise a triable issue of material fact with regard to whether the District had actual or constructive knowledge that Powell had a propensity for molesting students, including plaintiff. A reasonable jury could infer that the District knew or should have known that Powell presented a danger of harassment and sexual assault to his female students based on his alleged pattern of openly commenting about plaintiff and other female students' bodies and appearances, inappropriately touching plaintiff and other students in view of others, and making sexually suggestive comments about plaintiff in front of the class. Powell kept the door to his classroom open, so anyone could have seen his behavior. He also walked with plaintiff to his car at lunch in full view of other classrooms with students and staff present, and at least one teacher saw him and expressed her concern about the trips.¹ He also allegedly sexually assaulted plaintiff at his plant nursery, which was frequented by other staff members of the District. He also wrote notes for plaintiff and other female

¹ Defendant has objected to plaintiff's evidence regarding Ms. Flynn's statements as hearsay and speculation, as well as Powell's deposition testimony regarding the unidentified student who requested to be removed from his classroom. The court intends to overrule all of the objections.

Plaintiff has also objected to the declaration of Susan Rutledge in support of the summary judgment motion. The court intends to overrule plaintiff's objections.

The District has also argued that most of Powell's alleged abuse of plaintiff took place off school property, so it is statutorily immune from liability for his actions. (Education Code, § 44808.) However, at least some of Powell's alleged sexual harassment and assaults occurred while plaintiff was on campus, including his inappropriate touching of her in class and in the cafeteria, his placing her hand on his penis in class, and his sexual comments to her in front of the class. Therefore, even assuming that the District is immune from liability for Powell's conduct that occurred off campus, the District may still be liable for his actions on school property.

Finally, while plaintiff does not oppose the motion for summary adjudication of the tenth cause of action, the motion as to the tenth cause of action is moot since plaintiff has already dismissed her tenth cause of action. (See Request for Dismissal filed May 8, 2023.) Therefore, the court intends to deny the motion for summary adjudication as to the tenth cause of action as well.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

25